

Submitted by Robin Bergman, Town Meeting Member, Precinct 12
at the request of Jordan Weinstein, precinct 21

May 1, 2026

RE: ARTICLE 53 SUBSTITUTE MOTION

Dear Fellow Town Meeting Members,

I am writing to express my support for the Article 53 Substitute Motion that, if passed, would clarify the original intent of Town Meeting in passing the MBTA overlay districts bylaw. I was a Town Meeting Member at the time that the MBTA overlay was enacted.

As I recall, our original intent of the bylaw included provisions to provide construction bonuses to developers who set aside 60% of the ground floor of their building for commercial use. It was understood at the time that this meant 60% of the building footprint at ground level. It did not mean 60% of the ground floor once parking spaces or other items were subtracted from the ground floor square footage. Our criteria in providing the bonuses for developers was deliberately strict because the impact of building taller and without setbacks would be a burden on the neighborhood. To offset this, our language was intended to provide large commercial spaces for desirable neighborhood amenities.

I believe that the Arlington Redevelopment Board (ARB), with its granting of recent construction permits, is misinterpreting the original intent of our MBTA overlay bylaw, resulting in smaller commercial spaces than we intended.

For this reason, I urge you to vote YES on the Article 53 Substitute Motion.

Sincerely,

Jordan Weinstein
Fmr. TMM pct 21